ORDINANCE NO. 375

OF

THE CITY OF RECTOR, ARKANSAS

AN ORDINANCE CREATING A RECREATION COMMISSION

WHEREAS, the City of Rector, desiring to avail themselves of the benefits of Act No. 348 of 1947 and Act No. 681 of 1983 permitting the creation of a Recreation Commission, and

WHEREAS, the City of Rector has numerous recreational park and other endeavors in progress for purposes of general recreation of citizens and residents of Rector, Arkansas and the immediate area and is in need of a more viable and systematic method of promoting, regulating and operating the existing recreational facilities.

NOW, THEREFORE, BE IT ORDAINED BY THE GOVERNMENTAL BODY OF THE CITY OF RECTOR, ARKANSAS:

SECTION I: CREATION OF COMMISSION. There is hereby created a Recreation Commission for the City of Rector, in accordance with Arkansas Statute 19-3607, et. seq.

SECTION II: MEMBERSHIP. The Recreation Commission shall consist of seven (7) members, to be composed of no less than five (5) citizens who are qualified electors of the City of Rector and two (2) members that need not be required to be qualified electors of the Municipality but may be in the event that suitable persons are not available in the judgment of those persons appointing and confirming such members.

SECTION III: TERM OF COMMISSION MEMBERS. The Commissioners first appointed and confirmed after the passage of this Ordinance shall serve for a term of one (1) member for one (1) year; one (1) member for two (2) years; one (1) member for three (3) years; two (2) members for four (4) years; and two (2) members for five (5) years, all of said members to be appointed by the Mayor and

confirmed by majority vote of the duly elected, qualified members of the City Council. In the event that the Mayor and the Council should select two (2) persons for such Board Member positions that are not duly qualified electors of the City of Rector, Arkansas that their first terms shall be for four (4) years and five (5) years respectively in such initial appointment.

SECTION IV: EXPIRATION OF TERMS AND VACANCIES. Upon the expiration of their respective terms, Commissioners appointed by the Mayor and approved by majority vote of the City Council shall be appointed for a term of five (5) years. In the event of a vacancy occurring on the Commission, it shall be appointed by the Mayor, subject to approval majority vote of the duly elected and qualified members of the City Council. Each Commissioner shall file the oath required by law of the State of Arkansas for public officials.

SECTION V: POWERS OF COMMISSIONERS. The Commissioners hereinunder appointed shall have:

(a) Full and complete authority to build, manage, operate, maintain and keep in good state of repairs any municipal building deemed necessary to carry on a recreation park for said municipality, including the building of swimming pools, field houses, stadiums, zoos, or other buildings necessary to carry on the recreational park.

(b) Said commission shall have full and complete charge of said buildings and grounds, including the right to control and permit or refuse to permit such public gatherings or other meetings or affairs as the Commissioners shall see fit and deem to be to the best interests of the City.

(c) The Commissioners shall have the right to employ or remove managers, janitors and other employees of whatsoever nature, kind or character, and to fix, regulate and pay their salaries; it being the intention of this act to vest in said Commissioners authority to build, operate, manage, maintain and

control said municipal recreational park, and to have full and complete charge thereof; provided, said Commissioners shall not have authority or power to sell, mortgage or encumber said property unless otherwise authorized by the statutes of Arkansas.

(d) The Commissioners hereunder shall have, in addition to other powers enumberated herein, the exclusive right and power to make purchases of all supplies, apparatus and other property and things requisite and necessary for the management and operation of said recreational park, including the construction of same and repairs and additions thereto.

(e) Said Commissioners shall have authority to enter into contracts with persons, firms or corporations or organizations for the use of recreational park buildings or parts thereof.

(f) The Commissioners shall adopt such rules and regulations as they may deem necessary and expedient for the proper operation and management of said municipal recreational park, and shall have authority to alter, change, or amend such rules and regulations at their discretion.

(g) The Commissioners shall submit quarterly reports, beginning three (3) months after they take their oath of office, and each three (3) months thereafter, reporting in full on the operations, including an accounting of Receipts and Disbursements, to the Mayor and City Council and furnish such other and further reports, data and information as may be requested by the Mayor or City Council. The quarterly report to the Mayor and City Council with respect to Receipts and Disbursements, shall be certified by the Commissioners as correct. The Commissioners shall further submit an annual audit of the operations of the recreational park to the Mayor and City Council.

(h). The Commissioners hereunder appointed shall have the authority to utilize all revenues derived from the operations of the recreational park in the operation of said recreational park. All funds derived from the use of said recreational park shall be segregated into a Park Fund, which Fund shall be used

exclusively in the operation of the recreational park by the Commissioners. Moneys in said Fund shall not be mingled with other funds of the City and shall be handled exclusively by the Commissioners. Said Commissioners shall each furnish to the City of $5,000.00 surety bond that will serve to insure the City against any misappropriation or mishandling of funds. The surety on said bond shall be (a) reputable surety corporation. The premium on said bonds shall be paid for from moneys in the said Park Fund. The Commissioners shall receive no salary for their services, but shall be reimbursed from the Park Fund for actual expenses incurred in the performance of their duties. Such Park Fund may also be expended by the Commissioners, as they deem best, for the purpose of obtaining attractions to meet on said park.

(i) Upon each quarterly report being made to the Mayor and City Council by the Commissioners, the City Council may appropriate funds from the General Revenue Fund of the City, or from such other funds as the City may have available to make up any deficits or to provide such funds as may be necessary to carry on the operations of the said recreational park. The City Council may at any time other than when said quarterly report is filed, appropriate such funds as it deems necessary, from the General Revenue Fund or such other funds that the City may have available for the purpose of maintaining and operating the said recreational park.

SECTION VI: REMOVAL OF COMMISSIONERS. Any Commissioner appointed by the provisions of this Ordinance may be removed for cause upon a two-thirds (2/3) vote of the duly elected and qualified members of the City Council of the City of Rector.

SECTION VII: REPEAL OF ORDINANCE. This Ordinance may be repealed by affirmative vote of three-fourths (3/4) of the duly elected and qualified members of the City Council of the City of Rector.

SECTION VIII: EMERGENCY CLAUSE. It is determined that the above described creation of a Recreation Commission is needed

immediately in order to properly care for the citizens of the City, and an emergency is therefore declared to exist; and this Ordinance shall be in full force and effect from and after its passage, approval, and publication as required by law.

DATED This 10 day of March, 1987.

CITY OF RECTOR, ARKANSAS

BY: Reuben Seay
Reuben Seay, Mayor

ATTEST:

Dorene Gordon
Dorene Gordon, City Clerk